P-16

DEPOSITED IN THE U.S. MAIL
ON APR 06 2015
BY THE DISTRICT CLERK OR
DESIGNEE.
DEPUTY

CITATION
THE STATE OF TEXAS
CAUSE NO. 14311440101A

THE STATE OF TEXAS
VS. RIVERA, ERIK
AND FINANCIAL CASUALTY & SURETY. INC. (Agent: AGENT: ANTHONY MUHARIB)

TO: RIVERA, ERIK
2204 PEREZ RD
PASADENA, TX 77502

Attached is a copy of the Judgment of Forfeiture (Judgment Nisi) a copy of the forfeited bond, and a copy of the power of attorney if any was provided filed in the 228th District Court of Harris County Texas located at 1201 Franklin Houston, TX 77002 Floor 16, on the _____ day of APR 02 2015 _____, _____, describing the claim against you. You are hereby notified to appear and show cause why the Judgment of Forfeiture (Judgment Nisi) should not be made final The parties in this case are:

The State Of Texas, Plaintiff, RIVERA, ERIK
AND FINANCIAL CASUALTY & SURETY. INC. (Agent: AGENT: ANTHONY MUHARIB)

Defendant(s), YOU HAVE BEEN SUED. You may employ an attorney. If you or your attorney do not file a written answer with the clerk who issued this citation by 10:00 a.m. on the Monday next following the expiration of twenty days after you were served this citation and Judgment of Forfeiture (Judgment Nisi) a default judgment may be taken against you. The District Clerk who issued this citation is located at the Criminal Justice Center, 1201 Franklin, room 3168, Houston, Texas 77002. The Post Office Box is 4651, Houston, Texas 77210-4651.

ISSUED AND GIVEN UNDER MY HAND AND SEAL OF THE COURT AT HOUSTON, TEXAS, this the _____ day of APR 06 2015, _____.

REQUESTED BY:
Devon Anderson, District Attorney, Harris County
Attorney for Plaintiff, State of Texas
1201 Franklin, Suite 600
Houston, Texas 77002

by Chris Daniel,
Chris Daniel, District Clerk
Harris County, Texas

DISTRICT COURT OF HARRIS COUNTY TEXAS

RETURN FOR CERTIFIED MAIL

Received this citation on the _____ day of _____ _____, at _____ o'clock _____.m.
Executed on the _____ day of _____, _____, by mailing to the within named defendant,
RIVERA, ERIK at 2204 PEREZ RD PASADENA, TX 77502

By certified mail, return receipt requested, with delivery restricted to addressee only, a true copy of this citation with a copy of the Judgment of Forfeiture (Judgment Nisi) a copy of the forfeited bond and a copy of the power of attorney if any was provided, attached and said receipt was returned [ ] postmarked received by addressee, [ ] postmarked signed by other than addressee, [ ] postmarked signed, signature illegible, [ ] postmarked unclaimed.

_____
Signature of Authorized Person

_____
Printed Name of Authorized Person

Unofficial Copy Office of Marilyn Burgess District Clerk

RECORDER'S MEMORANDUM
This instrument is of poor quality
at the time of imaging

JUDGMENT OF FORFEITURE (JUDGMENT NISI)
SCIRE FACIAS NO.: 14311440101A
IN THE 228TH DISTRICT COURT OF HARRIS COUNTY TEXAS

THE STATE OF TEXAS
VS
RIVERA, ERIK
FINANCIAL CASUALTY & SURETY. INC. (AGENT: ANTHONY MUHARIB)

On 3/31/2015 the personal appearance of the Defendant, RIVERA, ERIK, was required before this Court to answer the charge of a FELONY. The Defendant did not appear. The Defendant's name was distinctly called at the courthouse door, and after waiting a reasonable time, the Defendant failed to appear. It is, therefore, ORDERED that the bond of the Defendant is declared forfeited, and the State of Texas shall have and recover of and from the Defendant,

RIVERA, ERIK, as principal,
AND FINANCIAL CASUALTY & SURETY. INC. (AGENT: ANTHONY MUHARIB)
the surety(s), if any, on the bond, the sum of $40,000.00 plus costs of court. This judgment will become final unless good cause be shown why the defendant did not appear.

It is further ORDERED that citation issue to the surety(s), if any, commanding them to appear before this Court by filing a written answer at or before 10:00 a.m. of the Monday next after the expiration of twenty days after the date of service of the citation and show cause why this judgment of forfeiture should not be made final. Service of citation upon surety(s), if any, may be accomplished by United States certified mail, return receipt requested, delivery restricted to addresee only.

It is further ORDERED that the notice to the Defendant, as principal, be deposited in the United States mail, directed to the Defendant at the address shown on the bond.

It is further ORDERED that an alias capias issue for the arrest of the Defendant.

SIGNED: 4-2-15

JUDGE PRESIDING

Unofficial Copy Office of Marilyn Burgess District Clerk

2060280

BAIL BOND

2015 FEB 23

CASE NO. 1431144

CHARGE AGG SEX ASSLT CHILD-UNDER 14

SPN 02399218

COURT SETTING:

DATE March 31st, 2015

TIME 8:00 AM

HARRIS COUNTY TEXAS

Known All Men By These Presents:

That we, Rivera, Erik, or principal, and the undersigned FINANCIAL CASUALTY & SURETY, INC. AGENT ANTHONY MUHARIB as sureties, are held and firmly bound unto the STATE OF TEXAS, in the penal sum of FORTY THOUSAND DOLLARS ($ 40,000.00) Dollars and, in addition thereto, we are bound for the payment of all fees and expenses that may be incurred by any peace officer in re-arresting the said principal in the event any of the hereinafter stated conditions of this bond are violated for the payment of which sum or sums well and truly to be made, we do bind ourselves, and each of us, our heirs, executors and administrators, jointly and severally.

THE CONDITION OF THIS BOND IS THAT THE DEFENDANT HAS BEEN CHARGED WITH A Felony (Felony-Misdemeanor) offense and to secure his release from custody is entering into this obligation binding him to appear before 1201 FRANKLIN ST HOUSTON TX 77002 DISTRICT COURT 228 County of Harris County, Texas.

NOW THEREFORE, IF THE SAID PRINCIPAL SHALL WELL AND TRULY MAKE HIS PERSONAL APPEARANCE BEFORE SAID COURT INSTANTER AS well as before any other court to which the same may be transferred and for any as all subsequent proceedings that may be had relative to said charge in the course of criminal actions based on said charge, and there remain from day to day and term to term of said courts, until discharged by due course of law, then and there to answer said accusation against him, this obligation shall become void, otherwise to remain in full force and effect.

Taken and approved this 23rd day of February, 20 15

Adrian Garcia, Sheriff Harris County, Texas

by _____, Deputy

Financial Casualty & Surety, Inc.

AGENT ANTHONY MUHARIB Surety

1314 Texas Ave. Suite 1020 (Mailing Address)

Houston, TX 77002 (City and State) (832) 506-2337 (Phone)

Lic.# 74563 Expl. D.P.

SIGNED AND DATED February 23rd, 20 15

(Principal Signature)

2204 Perez RD (Mailing Address)

Pasadena, TX 77502 (City and State)

RACE ____ SEX ____ DOB ____ HT. ____ WT. ____

HAIR ____ EYES ____ DL# ____ STATE ____

THUMB PRINT

THE DEFENDANT SHALL NOT HAVE ANY CONTACT WITH THE PROSECUTION /S/, WITNESS /S/, THE COMPLAINANT /S/, OR THE ALLEGED VICTIM /S/.

Jail Location County/7D

Citizen Status: 4

Holds:

ICE: A#

SB COST RECEIPT # 6553

FILED
Chris Daniel
District Clerk
FEB 24 2015
Time: Harris County, Texas
By _____, Deputy

RECORDER'S MEMORANDUM
This instrument is of poor quality at the time of imaging.

OATH OF SURETY
THE STATE OF TEXAS
COUNTY OF HARRIS

I, FINANCIAL CASUALTY & SURETY, INC. do swear that I am worth in my own right, at least double the amount of the sum for which I am bound, exclusive of all property exempted by law from execution, and of debts or other encumbrances, that I am a resident of the State of Texas and I have property in the State of Texas liable to execution worth the sum for which I am bound.

Surety (Signature) AGENT ANTHONY MUHARIB

Presenter (Signature)

CASSANDRA ANGELA RAMIREZ
Notary Public, State of Texas
My Commission Expires
May 04, 2016

Presenter Rt. Thumb Print

ID #: 05117499

SUBSCRIBED AND SWORN to before me this 23rd day of February A.D. 20 15

Cassandra Angela Ramirez
NOTARY PUBLIC HARRIS COUNTY

My Commission Expires: 5.4.16

ORIGINAL – DISTRICT CLERK

11-01-2009

Unofficial Copy Office of Marilyn Burgess District Clerk

VOID IF NOT ISSUED BY		POWER NUMBER
31-Aug-15	**State or Municipal Court**	**FCS50-1462862**
3131 Eastside, Suite 600, Houston, TX 77098	POWER OF ATTORNEY **Financial Casualty & Surety, Inc.** The Bail Insurance Company	Tele.# 877.737.2245

KNOW ALL MEN BY THESE PRESENTS that Financial Casualty & Surety, Inc., a corporation duly organized and existing under the laws of the State of Texas does constitute and appoint and by these presents does make, constitute and appoint the named agent its true and lawful Attorney-in-Fact for it and in its name, place and stead, to execute, seal and deliver for and on its behalf and as its act and deed, as surety, a bail bond only. Authority of such Attorney-in-Fact is limited to appearance bonds and cannot be construed to guarantee defendant's future lawful conduct, adherence to travel limitation, fines, restitution, payments or penalties, or any other condition imposed by a court not specifically related to court appearance.

This Power of Attorney is for use with Bail Bonds only. Not valid if used in connection with Federal Immigration Bonds. This power is void if altered or erased, void if used in combination with other Powers of this company or Powers from any other surety, void if used to furnish bail in excess of the maximum stated amount of this Power. This Power Number is unique and can only be used once. The obligation of the surety shall not exceed the sum of:

*****Fifty Thousand Dollars and Zero Cents***** *****$50,000.00*****

and this original Power-of-Attorney with the original bond MUST together be [illegible] with the court and retained as a part of the court's records. The said Attorney-in-Fact is hereby authorized to insert in this Power-of-Attorney the [illegible] e person on whose behalf this bond was given.

IN WITNESS WHEREOF, THE FINANCIAL CASUALTY & SURETY, INC. has caused these presents to be signed by its duly authorized officer, proper for the purpose and its corporate seal to be affixed this 23 (Day) of FEBRUARY (Month), 2015 (Year).

Defendant RIVERA, ERIK Premium Charged $

Court 228 City HOUSTON State TX Case Number 1431144

Bond Amount $ 40,000 Charge(s) AGG SEX ASSLT CHILD-UNDER 14

If Rewrite, Original Number

Executing Agent

SEAL

Senior Vice President

NOT VALID IF USED IN **Federal Court**

Micro Printed (Anti-Forgery) Message is Contained in this Document's Border ~ If missing, the Document is FORGED and VOID

[FCS-103 (12/05)] COPY FOR COURT

Unofficial Copy Office of Melissa Burgess District Clerk

HARRIS COUNTY, TEXAS

ASSIGNMENT OF AUTHORITY

DATE 2/23/15 TIME 4:20 AM/PM

Good for 48 Hours Bond must be attached to be valid.

LIABILITY LIMIT $ 40,000.00

I HEREBY AUTHORIZE Carlos R. Rendon TDL# 0811799 TO ACT ON MY BEHALF TO PRESENT THIS BAIL BOND(S). BOND NUMBER 2060280 FOR THE PURPOSE OF RELEASING DEFENDANT Erik Rivera CASE# 1431144 FROM HARRIS COUNTY/CITY OF HOUSTON / OR County JAIL

THE UNDERSIGNED AGENT SPECIFICALLY AGREES TO HOLD HARMLESS ALL JUDGES, LAW ENFORCEMENT OFFICIALS, AND THEIR AGENTS FROM LIABILITY THAT MAY IN CONNECTION WITH THE EXECUTION OR USE OF THIS ASSIGNMENT FORM ON THE ABOVE DESIGNATED BOND(S).

BY: _____

SURETY – ANTHONY MUHARIB
LICENSE #74563

THE STATE OF TEXAS
COUNTY OF HARRIS

BEFORE ME, THE UNDERSIGNED AUTHORITY, ON THIS DAY PERSONALLY APPEARED Carlos R. Rendon KNOWN TO ME TO BE THE PERSON WHOSE NAME IS SUBSCRIBED TO THE FOREGOING INSTRUMENT AND ACKNOWLEDGED TO ME THAT HE/SHE EXECUTED THE SAME FOR THE PURPOSE AND CONSIDERATION THEREIN EXPRESSED.

GIVEN UNDER MY HAND AND SEAL OF OFFICE ON THIS 23 DAY OF Feb 2015

Cassandra Angela Ramirez
NOTARY PUBLIC STATE OF TEXAS
MY COMMISSION EXPIRES 5.4.16

CASSANDRA ANGELA RAMIREZ
Notary Public, State of Texas
My Commission Expires
May 04, 2016

THE STATE OF TEXAS
COUNTY OF HARRIS

BEFORE ME, THE UNDERSIGNED AUTHORITY, ON THIS DAY PERSONALLY APPEARED ANTHONY MUHARIB-AGENT FINANCIAL CASUALTY & SURETY INC, KNOWN TO ME TO BE PERSON WHOSE NAME IS SUBSCIBED TO THE FOREGOING INSTRUMENT AND ACKNOWLEDGE TO ME THAT HE EXECUTED THE SAME FOR THE PURPOSE AND CONSIDERATION THEREIN EXPRESSED.

GIVEN UNDER MY HAND AND SEAL OF OFFICE ON THIS 23 DAY OF Feb 2015

Cassandra Angela Ramirez
NOTARY PUBLIC STATE OF TEXAS
MY COMMISSION EXPIRES 5.4.16

CASSANDRA ANGELA RAMIREZ
Notary Public, State of Texas
My Commission Expires
May 04, 2016

Unofficial Copy Office of Marilyn Burgess District Clerk

2060280

BAIL BOND

2015 FEB 23 AM 8:00

CASE NO. 1431144

CHARGE AGG SEX ASSLT CHILD-UNDER 14

SPN 02399218

COURT SETTING:

DATE March 31st, 2015

TIME 8:00 AM

Known All Men By These Presents:

That we, Rivera, Erik, or principal, and the undersigned FINANCIAL CASUALTY & SURETY, INC. AGENT ANTHONY MUHARIB as sureties, are held and firmly bound unto the STATE OF TEXAS, in the penal sum of FORTY THOUSAND DOLLARS ($ 40,000.00) Dollars and, in addition thereto, we are bound for the payment of all fees and expenses that may be incurred by any peace officer in re-arresting the said principal in the event any of the hereinafter stated conditions of this bond are violated for the payment of which sum or sums well and truly to be made, we do bind ourselves, and each of us, our heirs, executors and administrators, jointly and severally.

THE CONDITION OF THIS BOND IS THAT THE DEFENDANT HAS BEEN CHARGED WITH A Felony (Felony-Misdemeanor) offense and to secure his release from custody is entering into this obligation binding him to appear before 1201 FRANKLIN ST HOUSTON TX 77002 DISTRICT COURT 228 County of Harris County, Texas.

NOW THEREFORE, IF THE SAID PRINCIPAL SHALL WELL AND TRULY MAKE HIS PERSONAL APPEARANCE BEFORE SAID COURT INSTANTER AS well as before any other court to which the same may be transferred and for any an all subsequent proceedings that may be had relative to said charge in the course of criminal actions based on said charge, and there remain from day to day and term to term of said courts, until discharged by due course of law, then and there to answer said accusation against him, this obligation shall become void, otherwise to remain in full force and effect.

Taken and approved this 23rd day of February, 20 15

Adrian Garcia, Sheriff Harris County, Texas

by _____, Deputy

SIGNED AND DATED February 23rd, 20 15

(Principal Signature)

2204 Perez RD

(Mailing Address)

Pasadena TX 77502

(City and State)

Financial Casualty & Surety, Inc.

Surety

AGENT ANTHONY MUHARIB

1314 Texas Ave. Suite 1020

(Mailing Address)

Houston, TX 77002 (832) 506-2337

(City and State) (Phone)

Lic.# 74563 Empl. D.P.

RACE ____ SEX ____ DOB ____ HT. ____ WT. ____

HAIR ____ EYES ____ DL# ____ STATE ____

THUMB PRINT

THE DEFENDANT SHALL NOT HAVE ANY CONTACT WITH THE PROSECUTION /S/, WITNESS /S/, THE COMPLAINANT /S/, OR THE ALLEGED VICTIM /S/.

Jail Location County/ND

Citizen Status: 4

Holds:

ICE: A#

SB COST RECEIPT # 676553

FILED
Chris Daniel
District Clerk
FEB 24 2015
Time: Harris County, Texas
By _____, Deputy

RECORDER'S MEMORANDUM
This instrument is of poor quality at the time of imaging.

OATH OF SURETY
THE STATE OF TEXAS
COUNTY OF HARRIS

I, FINANCIAL CASUALTY & SURETY, INC. do swear that I am worth in my own right, at least double the amount of the sum for which I am bound, exclusive of all property exempted by law from execution, and of debts or other encumbrances, that I am a resident of the State of Texas and I have property in the State of Texas liable to execution worth the sum for which I am bound.

Surety (Signature) AGENT ANTHONY MUHARIB

Presenter (Signature)

CASSANDRA ANGELA RAMIREZ
Notary Public, State of Texas
My Commission Expires
May 04, 2016

IMAGED

Presenter Rt. Thumb Print

ID #: 08117499

SUBSCRIBED AND SWORN to before me this 23rd day of February A.D. 20 15

Cassandra Angela Ramirez
NOTARY PUBLIC HARRIS COUNTY

My Commission Expires: 5.4.16

Unofficial Copy Office of Marilyn Burgess District Clerk

ORIGINAL – DISTRICT CLERK

11-01-2009

VOID IF NOT ISSUED BY
31-Aug-15

State or Municipal Court
POWER OF ATTORNEY

POWER NUMBER
FCS50-1462862

3131 Eastside, Suite 600, Houston, TX 77098

Financial Casualty & Surety, Inc.
The Bail Insurance Company

Tele.# 877.737.2245

KNOW ALL MEN BY THESE PRESENTS that Financial Casualty & Surety, Inc., a corporation duly organized and existing under the laws of the State of Texas does constitute and appoint and by these presents does make, constitute and appoint the named agent its true and lawful Attorney-in-Fact for it and in its name, place and stead, to execute, seal and deliver for and on its behalf and as its act and deed, as surety, a bail bond only. Authority of such Attorney-in-Fact is limited to appearance bonds and cannot be construed to guarantee defendant's future lawful conduct, adherence to travel limitation, fines, restitution, payments or penalties, or any other condition imposed by a court not specifically related to court appearance.

This Power of Attorney is for use with Bail Bonds only. Not valid if used in connection with Federal Immigration Bonds. This power is void if altered or erased, void if used in combination with other Powers of this company or Powers from any other surety, void if used to furnish bail in excess of the maximum stated amount of this Power. This Power Number is unique and can only be used once. The obligation of the surety shall not exceed the sum of:

*****Fifty Thousand Dollars and Zero Cents***** *****$50,000.00*****

and this original Power-of-Attorney, with the original bond MUST together be [illegible] with the court and retained as a part of the court's records. The said Attorney-in-Fact is hereby authorized to insert in this Power-of-Attorney the name [illegible] person on whose behalf this bond was given.

IN WITNESS WHEREOF, THE FINANCIAL CASUALTY & SURETY, INC. has caused these presents to be signed by its duly authorized officer, proper for the purpose and its corporate seal to be affixed this 23 (Day) of FEBRUARY (Month) 2015 (Year)

Defendant RIVERA, ERIK Premium Charged $

Court 228 City HOUSTON State TX Case Number 1431144

Bond Amount $ 40,000 Charge(s) AGG SEX ASSLT CHILD-UNDER 14

If Rewrite, Original Number

Executing Agent

FINANCIAL CASUALTY & SURETY, INC. CORPORATE SEAL 1989 TEXAS

Senior Vice President

NOT VALID IF USED IN **Federal Court**

Micro Printed (Anti-Forgery) Message is Contained in this Document's Border ~ If missing, the Document is FORGED and VOID

[FCS-103 (12/05)] COPY FOR COURT

Unofficial Copy Office of Marilyn Burgess District Clerk

HARRIS COUNTY, TEXAS

ASSIGNMENT OF AUTHORITY

DATE 2/23/15 TIME 4:20 AM/PM

Good for 48 Hours Bond must be attached to be valid.

LIABILITY LIMIT $ 40,000.00

I HEREBY AUTHORIZE Carlos R. Rendon TDL# 08117499 TO ACT ON MY BEHALF TO PRESENT THIS BAIL BOND(S). BOND NUMBER 2060280 FOR THE PURPOSE OF RELEASING DEFENDANT Erik Rivera CASE# 1431144 FROM HARRIS COUNTY/CITY OF HOUSTON / OR County JAIL.

THE UNDERSIGNED AGENT SPECIFICALLY AGREES TO HOLD HARMLESS ALL JUDGES, LAW ENFORCEMENT OFFICIALS, AND THEIR AGENTS FROM LIABILITY THAT MAY IN CONNECTION WITH THE EXECUTION OR USE OF THIS ASSIGNMENT FORM ON THE ABOVE DESIGNATED BOND(S).

BY: _____

SURETY – ANTHONY MUHARIB
LICENSE #74563

THE STATE OF TEXAS
COUNTY OF HARRIS

BEFORE ME, THE UNDERSIGNED AUTHORITY, ON THIS DAY PERSONALLY APPEARED Carlos R. Rendon KNOWN TO ME TO BE THE PERSON WHOSE NAME IS SUBSCRIBED TO THE FOREGOING INSTRUMENT AND ACKNOWLEDGED TO ME THAT HE/SHE EXECUTED THE SAME FOR THE PURPOSE AND CONSIDERATION THEREIN EXPRESSED.

GIVEN UNDER MY HAND AND SEAL OF OFFICE ON THIS 23 DAY OF Feb 2015

Cassandra Angela Ramirez
NOTARY PUBLIC STATE OF TEXAS
MY COMMISSION EXPIRES 5.4.16

CASSANDRA ANGELA RAMIREZ
Notary Public, State of Texas
My Commission Expires
May 04, 2016

THE STATE OF TEXAS
COUNTY OF HARRIS

BEFORE ME, THE UNDERSIGNED AUTHORITY, ON THIS DAY PERSONALLY APPEARED ANTHONY MUHARIB-AGENT FINANCIAL CASUALTY & SURETY INC. KNOWN TO ME TO BE PERSON WHOSE NAME IS SUBSCIBED TO THE FOREGOING INSTRUMENT AND ACKNOWLEDGE TO ME THAT HE EXECUTED THE SAME FOR THE PURPOSE AND CONSIDERATION THEREIN EXPRESSED.

GIVEN UNDER MY HAND AND SEAL OF OFFICE ON THIS 23 DAY OF Feb 2015

Cassandra Angela Ramirez
NOTARY PUBLIC STATE OF TEXAS
MY COMMISSION EXPIRES 5.4.16

CASSANDRA ANGELA RAMIREZ
Notary Public, State of Texas
My Commission Expires
May 04, 2016

Unofficial Copy Office of Marilyn Burgess District Clerk

BILL OF COSTS

MARCH 03, 2016

REMIT TO CHRIS DANIEL, DISTRICT CLERK
HARRIS COUNTY, TEXAS

CASE NO: 14311440101A IN THE 228 DISTRICT COURT OF HARRIS COUNTY, TEXAS

THE STATE OF TEXAS VS.
ERIK RIVERA
FCS - ANTHONY MUHARIB

DEPOSITED IN THE U.S. MAIL
ON Mar. 3
BY THE DISTRICT CLERK OR
DESIGNEE.
DEPUTY

FOR JUDGMENT DATED: 03/03/2016

FEE	DESCRIPTION	QUANTITY	ASSESSED	PAID	DUE
100	FILING FEE		50.00	0.00	50.00
121	CITATION	1	8.00	0.00	8.00
118	SERVICE OF CITATION		0.00	0.00	0.00
141	EXECUTION		0.00	0.00	0.00
140	ABSTRACT		0.00	0.00	0.00
475	LAW LIBRARY		15.00	0.00	15.00
450	JUDICIAL FILING FEE		50.00	0.00	50.00
601	DISPUTE RESOLUTION FEE		10.00	0.00	10.00
775	APPELLANT JUDICIAL FUND		5.00	0.00	5.00
199	RECORD PRESERVATION FEE		5.00	0.00	5.00
195	SECURITY SERVICE FEE		5.00	0.00	5.00
196	SECURITY FEE		0.00	0.00	0.00
525	STENO FEE		15.00	0.00	15.00
300	SHERIFFS FEE		0.00	0.00	0.00
301	SHERIFFS RE-ARREST FEE		0.00	0.00	0.00
105	MOTION FOR NEW TRIAL		0.00	0.00	0.00
379	SERVICE BY MAIL(DCO)		0.00	0.00	0.00
176	DIGITAL REC PRESERVATION FEE		10.00	0.00	10.00
198	DC RECORDS PRESERVATION FEE		5.00	0.00	5.00
178	ELECTRONIC FILING SYSTEM STATE		30.00	0.00	30.00
500	FELONY JURY FEE 1		0.00	0.00	0.00
502	FELONY JURY FEE 2		0.00	0.00	0.00
452	LEGAL SERVICES FEE		10.00	0.00	10.00
156	PREJUDGMENT INTEREST		1463.01	0.00	1463.01
153	JUDGMENT		0.00	0.00	0.00
453	SUPPORT JUDICIARY FEE		42.00	0.00	42.00
175	DIST COURTS RECORDS ARCHIVE FEE		10.00	0.00	10.00
TOTALS			**1733.01**	**0.00**	**1733.01**

This is a bill. Payment is required immediately. No personal Checks, out of County Company Checks or out of State Checks are accepted.

FCS-MUHARIB, ANTHONY
1314 TEXAS #1020
HOUSTON, TX 77002

Unofficial Copy Office of Marilyn Burgess District Clerk

[FM01A]FNL

NO. **1431144-A**

THE STATE OF TEXAS	§	IN THE DISTRICT COURT
V.	§	OF HARRIS COUNTY, TEXAS
ERIK RIVERA, ET AL	§	**228TH** JUDICIAL DISTRICT

FINAL JUDGMENT OF FORFEITURE

On the **3RD** day of **MARCH, 2016**, came on for trial the above-captioned cause wherein the State of Texas is Plaintiff, **ERIK RIVERA** is Defendant-Principal, and **FINANCIAL CASUALTY & SURETY, INC. (AGENT: ANTHONY MUHARIB)** is Defendant-Surety; Defendant-Principal was duly notified of the forfeiture, but failed to answer or appear, and has wholly defaulted; Defendant-Surety answered and appeared; and the Court, after considering the pleadings and evidence herein, finds: the Defendant–Principal failed to appear in this court on **MARCH 31, 2015**; that the State has verified the Defendant–Principal was incarcerated on **DECEMBER 25, 2015**; that the Judgment of Forfeiture heretofore rendered against the Defendants should be made final; and, pursuant to TEX. CODE CRIM. PROC. ANN. art. 22.13, remittitur of all of the amount of the bond after deducting the costs of court and the interest accrued on the bond amount as provided by law is appropriate.

It is, therefore, ORDERED, ADJUDGED, and DECREED that the Judgment of Forfeiture is hereby made final and the State of Texas shall have and recover from **ERIK RIVERA**, Defendant-Principal, and **FINANCIAL CASUALTY & SURETY, INC. (AGENT: ANTHONY MUHARIB)**, Defendant-Surety, jointly and severally, the costs of court and interest accruing from the date of forfeiture to the date of the Defendant–Principal's incarceration at the interest rate provided by law on the bond amount, **$40,000.00** (DOLLARS), for all of which let execution issue. All relief not expressly granted herein is denied.

SIGNED this 3rd day of March, 2016.

JUDGE PRESIDING

Approved as to form:

ASSISTANT DISTRICT ATTORNEY

ATTORNEY/DEFENDANT-SURETY

CW

FILED
Chris Daniel
District Clerk
MAR 03 2016
Time:
Harris County, Texas
By
Deputy

In accordance with Rule 239a of the Texas Rules of Civil Procedure, I hereby certify to the District Clerk of Harris County, Texas, that the last known mailing address of the party against whom Default Judgment is taken in Scire Facias No. **1431144-A** in the **228TH** District Court of Harris County, Texas, is as follows:

DEFENDANT-PRINCIPAL: **ERIK RIVERA**
2204 PEREZ RD.
PASADENA, TX 77502

So witness my hand and signature this 24th day of February, 2016.

Assistant District Attorney

Unofficial Copy Office of Marilyn Burgess District Clerk

CHRIS DANIEL
HARRIS COUNTY DISTRICT CLERK
P.O. Box 4651
Houston, Texas 77210
(713) 755-6922

MARCH 03, 2016

Cause No. 14311440101A
RIVERA, ERIK
2204 PEREZ RD
PASADENA, TX 77502

RE: RIVERA, ERIK
Cause No. 14311440101A
Court: 228
Appearance Date: MARCH 31, 2015

Dear: RIVERA, ERIK

Please be advised that in the above named court of Harris County, Texas on MARCH 03, 2016, a Final Judgment of forfeiture has been issued.

Yours very Truly,

District Clerk of Harris County, Texas

JUYMZ

Unofficial Copy Office of Marilyn Burgess District Clerk

CHRIS DANIEL
HARRIS COUNTY DISTRICT CLERK
P.O. Box 4651
Houston, Texas 77210
(713) 755-6922

MARCH 03, 2016

Cause No. 14311440101A
FCS-MUHARIB, ANTHONY
1314 TEXAS #1020
HOUSTON, TX 77002

RE: RIVERA, ERIK
Cause No. 14311440101A
Court: 228
Appearance Date: MARCH 31, 2015

Dear: FCS-MUHARIB, ANTHONY

Please be advised that in the above named court of Harris County, Texas on MARCH 03, 2016, a Final Judgment of forfeiture has been issued.

Yours very Truly,

District Clerk of Harris County, Texas

JUYMZ

Unofficial Copy Office of Marilyn Burgess District Clerk

SCIRE FACIAS TRIAL DOCKET

IN THE 228TH JUDICIAL DISTRICT COURT

OF HARRIS COUNTY, TEXAS

TRIAL SETTINGS FOR: MARCH 3, 2016 @ 9:00 AM

CAUSE NO.	PLAINTIFF	DEFENDANTS
1395921-A	THE STATE OF TEXAS COST 9. NL - NRC	JOSUE ALEXANDER GARCIA AKA JOSUE GARCIA FINANCIAL CASUALTY & SURETY, INC. (AGENT: ANTHONY MUHARIB) (30,000; B/F 10/20/15) ANS: JAN G. BANKER
1420039-A	" FA	JAMAL MOLIZOME AKA JAMAL MOLIZONE FINANCIAL CASUALTY & SURETY, INC. (AGENT: ANTHONY MUHARIB) (10,000; B/F 06/03/15) ANS: JAN G. BANKER
1431144-A	" COST 9. NL-NRC	ERIK RIVERA FINANCIAL CASUALTY & SURETY, INC. (AGENT: ANTHONY MUHARIB) (40,000; B/F 03/31/15) ANS: JAN G. BANKER
1436548-A	" PFR BFPD: 1/22/16	UNGREKEN UNARD CHILDS AKA UNGREKEN CHILDS ACCREDITED SURETY & CASUALTY COMPANY (AGENT: WISAM MUHARIB) (20,000; B/F 04/29/15) ANS: JAN G. BANKER

FILED
Chris Daniel
District Clerk
JAN 12 2016
Time: _____
Harris County, Texas
By _____
Deputy

Unofficial Copy Office of Marilyn Burgess District Clerk

1467913-A "

COST 9
NL-NRC

CHAD ALLEN JOHNSON AKA CHAD JOHNSON
ACCREDITED SURETY & CASUALTY CO., INC.
(AGENT: MICHAEL W. COX)
(20,000; B/F 07/23/15)
ANS: KEN W. GOOD

1477238-A "

PFR
BFTD: 2/25/16

JOHN MITCHELL
LEXINGTON NATIONAL INSURANCE CORP.
(AGENT: JOSE LUIS AGUAYO)
(2,000; B/F 08/27/15)
ANS: JAN G. BANKER

JPON THE COURT'S OWN MOTION THE ABOVE ENTITLED AND NUMBERED CAUSES ARE
'OR TRIAL TO THE COURT AT 9:00 A.M. ON MARCH 3, 2016. IT IS FURTHER ORDERED THI
CLERK SHALL PLACE A COPY OF THIS DOCKET IN EACH SCIRE FACIAS CASE FILE LISTEI
THIS DOCKET.

JUDGE PRESIDING

Unofficial Copy Office of Marion County District Clerk

DOCKET NOTICES

JAN G. BANKER, P.O. BOX 940231, HOUSTON, TEXAS 77094-7231. ATTORNEY OF RECORD FOR
FINANCIAL CASUALTY & SURETY, INC. (AGENT: ANTHONY MUHARIB)
ACCREDITED SURETY & CASUALTY COMPANY (AGENT: WISAM MUHARIB)
LEXINGTON NATIONAL INSURANCE CORP. (AGENT: JOSE LUIS AGUAYO)

KEN W. GOOD, 5604 OLD BULLARD RD., SUITE 102, TYLER, TEXAS 75703. ATTORNEY OF RECORD FOR:
ACCREDITED SURETY & CASUALTY CO., INC. (AGENT: MICHAEL W. COX)

I HEREBY CERTIFY THAT A TRUE AND CORRECT COPY OF THE FOREGOING TRIAL DOCKET WAS SERVED TO THE ABOVE-LISTED PERSONS BY CERTIFIED MAIL OR HAND DELIVERY PURSUANT TO THE TEXAS RULES OF CIVIL PROCEDURE.

ASSISTANT DISTRICT ATTORNEY

Unofficial Copy Office of Marilyn Burgess District Clerk

FILED
Chris Daniel
District Clerk
APR 01 2015
Time: 9:45
Harris County, Texas
By
Deputy

SCIRE FACIAS NO. 1431144A

THE STATE OF TEXAS	IN THE DISTRICT COURT
VS.	
ERIK RIVERA Defendant – Principal	OF HARRIS COUNTY, TEXAS
FINANCIAL CASUALTY & SURETY, INC. AGENT ANTHONY MUHARIB Defendant-Surety	NUMBER 228

ORIGINAL ANSWER

COMES NOW, Defendant-Surety and files this Answer and would respectfully show to the Court as follows:

Defendant-Surety generally denies all of the allegations of Plaintiff's petition and demands strict proof thereof.

Defendant-Surety alleges that there are good and sufficient causes which would exonerate and/or mitigate the liability of the Defendant-Surety as follows:

A. The bond is not a valid and binding undertaking in law;
B. The principal was deceased before the forfeiture was taken;
C. The principal was prevented from appearing in court due to sickness or other uncontrollable circumstances through no fault on his part;
D. The State has failed to present an indictment or information at the first term of court held after the principal was admitted to bail;
E. The principal was incarcerated in a jurisdiction in the United States at the time of the forfeiture or within the applicable time periods set out in Code of Criminal Procedure, Art. 22.13, subdivision 5;
F. Defendant-Surety filed an affidavit pursuant to Code of Criminal Procedure, Art. 17.19, and the court has refused to issue a warrant for the arrest of the principal;
G. The clerk of the court failed to issue the capias or warrant within the time period required by Code of Criminal Procedure, Art. 23.05; or
H. The sheriff failed to enter a warrant into a local warrant system within the time period required by Code of Criminal Procedure, Art. 23.05.

Furthermore, Defendant-Surety requests that the Court grant a remittitur to the surety pursuant to Code of Criminal Procedure, Art. 22.16 because one or more of the following circumstances exist:

A. The principal was released on new bail in the case;
B. The criminal case against the principal has been dismissed; or
C. Other good cause exists to remit to the Defendant-Surety all or part of the amount of the bond.

WHEREFORE, premises considered, Defendant–Surety prays that the Plaintiff take nothing by its suit, and that all costs of court be assessed against Plaintiff. In the alternative, and considering the causes set out above, Defendant-Surety requests that the Court remit to the Defendant-Surety all or part of the bond amount. The Defendant-Surety further requests all other relief in law or in equity to which it may be entitled

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SBOT 01676800
ATTORNEY FOR DEFENDANT-SURETY

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